

		17. Counsel should not leave blank but should instead propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to Aggrieved Employees and all others in accordance with the settlement agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing date; the proposed order and judgment should specify this filing deadline. The Court further refers Plaintiff's counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Plaintiff's counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a continuance. Plaintiff to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.
114	Rodriguez vs. Alamitos Enterprises, LLC 2023-01349555	Motion for Approval of PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff's Counsel and finds that they mostly adequately address the previously identified issues. Accordingly, Plaintiff Aileen Rodriguez's Motion for Approval of PAGA Settlement is CONDITIONALLY GRANTED, pending the resolution of the issues identified below. This is a PAGA-only action. On 9/13/2023, Plaintiff Aileen Rodriguez filed a PAGA complaint against Defendants Alamitos Enterprises, LLC and The Alamitos Group, alleging a single cause of action for PAGA penalties. (ROA #2.) Defendant Alamitos Enterprises, LLC (erroneously sued as The Alamitos Group) answered on 11/22/2023. (ROA #15.) On 12/4/2025, Plaintiff filed the instant Motion for Approval of PAGA Settlement, and submitted for the Court's review the Private Attorney General Act Settlement Agreement and Release ("Settlement Agreement") and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The motion seeks approval of the parties' proposed settlement of Plaintiff's PAGA claims for the non-reversionary gross settlement amount (GSA) of \$500,000.

At the first hearing on the Motion on 4/2/2026, the Court ruled that an attorneys' fee award totaling \$150,000 or 30% of the GSA, constituting a multiplier of the lodestar amount, is fair, adequate, and reasonable for a settlement of this size, including considering the action's contingent nature and the results achieved. (ROA #84.) The Court also ruled that a General Release Payment of \$10,000 is fair, adequate, and reasonable for a settlement of this size, given Plaintiff's broader release compared to the aggrieved employees' release and given Plaintiff's representative service in this case which is not separately being compensated. (*Id.*) The Court continued the hearing on the Motion and asked Plaintiff's Counsel to address various issues. (*Id.*)

Counsel then submitted supplemental materials, including an Amendment No. 1 to the Private Attorneys General Act Settlement Agreement and Release ("Amendment No. 1") and an amended notice/cover letter.

One of the issues the Court raised in its 4/2/2026 minute order was: "10. Plaintiff's counsel must attest to whether there are any concurrent pending cases involving similar claims against Defendant that may be impacted by the settlement and how, or confirm that there is none." (ROA #84.) Counsel's supplemental declaration attests only that "there is one (1) concurrent pending action alleging wage and hour violations of the California Labor Code entitled *Roseanna Vasquez v. Alamitos Enterprises, LLC dba Jiffy Lube*, Los Angeles County Superior Court, Case No. 20STCV31966." (ROA #96, ¶ 30.) However, counsel's supplemental declaration fails to address "how" the concurrent pending case "may be impacted by the settlement," as the Court previously ordered. Indeed, counsel does not describe "the procedural status of the case" or "describe the impact of the settlement on the case," as required by the Guidelines for Approval of Class Action Settlements & PAGA Settlements for Department CX102. **Accordingly, within ten (10) court days, Plaintiff's counsel must submit a further supplemental declaration providing the missing information on the concurrent pending action to the Court's satisfaction.**

Upon resolution of this issue, the Court will grant the Motion and approve the following awards and disbursements from the Gross Settlement Amount:

- Attorneys' fees totaling \$151,579.82 awarded to Plaintiff's Counsel, Lawyers for Justice, PC;
- Litigation costs totaling \$20,000.00 awarded to Plaintiff's Counsel, Lawyers for Justice, P.C.;
- Settlement administration costs of \$7,402.18 awarded to Phoenix Class Action Administration Solution; and
- General Release Payment of \$10,000.00 awarded to Plaintiff Aileen Rodriguez.

PAGA penalties in the amount of \$316,284.08 shall be allocated as follows: seventy-five percent (75%), or \$237,213.06, payable to the Labor and Workforce Development Agency (LWDA); and twenty-five percent (25%),

		or \$79,071.02, payable to the Aggrieved Employees in accordance with the terms of the Settlement Agreement as amended by Amendment No. 1. Within five (5) court days, Plaintiff's Counsel must submit a revised Proposed Order with the following revisions: 1. In ¶¶ 2 and 3, the ROA number of counsel's supplemental declaration to which Amendment No. 1 is attached should be inserted. 2. Paragraph 18 must be amended to accurately reference all installment payments owed by Defendant. Currently, the description omits reference to Installment Payment #12. The Final Accounting hearing is set for August 26, 2027, at 2:00 p.m. in Department CX102. Plaintiff's Counsel must submit the settlement administrator's final report regarding distribution of the settlement funds at least sixteen (16) court days prior to the hearing regarding the status of the settlement administration. The final report must include all information necessary for the Court to determine the total amount actually paid to Aggrieved Employees, the number of uncashed settlement checks, and the total amount of any unclaimed funds remitted to the State Controller's Office Unclaimed Property Fund. If the unclaimed funds are not fully disbursed by the report deadline, counsel must request a continuance of the Final Accounting hearing. Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days of the date the Order and Judgment is entered.
115	Silva vs. Premier Chevrolet of Buena Park, LLC 2021-01218096	Motion for Approval of Class Settlement The joint Motion for Court Approval of the Parties' PAGA Settlement Approval filed by (1) Defendant Premier Automotive of Buena Park, LLC dba Premier Chevrolet of Buena Park (erroneously sued as Premier Chevrolet of Buena Park, L.L.C.); (2) Defendant Premier Automotive Management, LLC (erroneously sued as Premier Automotive Management, L.L.C. dba Premier Automotive) (collectively "Moving Defendants") and (3) Plaintiff Ronald Silva (collectively, "Moving Parties") is CONTINUED to August 27, 2026 at 2:00 p.m. in Department CX102 in order to give Moving Parties and their counsel an opportunity to address the issues identified below. This is a PAGA-only action. On 8/2/2021, Plaintiff Ronald Silva, on behalf of himself and all others similarly situated, filed a Complaint for PAGA civil penalties for violations of the Labor Code, including failure to pay minimum wages, failure to pay overtime wages, failure to pay wages earned during employment, failure to pay meal and rest period premiums, failure to maintain accurate employment records, and failure to pay wages due upon separation of employment. (ROA #2.) Named Defendants are Premier Chevrolet of Buena Park, LLC; Premier Automotive Management, LLC; Premier Nissan of San Jose, LLC; Premier Automotive of Carlsbad, LLC; Premier Automotive HCDJ of